

PRIVACY POLICY

Version: 1.0

Effective date: 13 July 2026

1. Introduction

Sunny Forex & Remittance Ltd (“Sunny Forex”, “we”, “us” or “our”) respects the privacy of customers, beneficiaries, website visitors, representatives, business partners and other persons whose personal data we process.

This Privacy Policy explains:

- What personal data we collect;
- Where we obtain it;
- Why we process it;
- The legal grounds for processing;
- Who we may share it with;
- How long we retain it;
- How we protect it; and
- The rights available to affected persons.

This Policy should be read together with our Terms of Service, AML/CFT/CPF Statement and Cookie Policy.

2. Who we are

Sunny Forex & Remittance Ltd is incorporated in Kenya under registration number **C.138645**.

Sunny Forex is licensed by the Central Bank of Kenya to provide money-remittance services under licence number **BSD/14/026/2026**.

Sunny Forex is registered with the Office of the Data Protection Commissioner as both a data controller and a data processor.

For the purposes of applicable data-protection law, Sunny Forex may act as:

- A **data controller** where we determine the purposes and means of processing personal data; or
- A **data processor** where we process personal data on behalf of another data controller under its documented instructions and applicable contractual arrangements.

Our role depends on the particular service, processing activity and relationship involved.

Registered office:

Lavington Avenue Complex, Ground Floor,
James Gichuru Road,
Lavington, Nairobi, Kenya
P. O. Box 34166 – 00100

Privacy and Data Protection Contact:

Email: privacy@sunnyremit.com

Telephone: +254 722 590 049

Postal address: P. O. Box 34166 – 00100

3. Scope

This Privacy Policy applies to personal data processed through:

- Our public website;
- Customer portals and applications;
- Branches and service locations;
- Remittance services;
- Foreign-exchange services;
- Cash collection and payout services;
- M-Pesa and other mobile-money services;
- Bank-account payout services;
- Customer-support channels;
- Email, telephone, SMS and messaging services;
- Agents and subagents;
- External remittance and payout partners;
- Application programming interfaces;
- CCTV systems;
- Events and promotions; and
- Other approved Sunny Forex channels.

Separate notices may apply to employees, job applicants, suppliers or particular products.

4. Persons whose data we process

We may process personal data relating to:

- Customers;
- Prospective customers;
- Senders;
- Beneficiaries;
- Persons collecting funds;
- Persons providing transaction funds;
- Directors and shareholders;
- Beneficial owners;

- Trustees, partners and office holders;
- Authorized representatives and signatories;
- Guarantors or sponsors;
- Agents and subagents;
- Business partners;
- Website and application users;
- Customer-support contacts;
- Visitors to our premises;
- Suppliers and service-provider representatives; and
- Persons connected to suspected fraud, disputes or regulatory investigations.

Where a customer provides personal data about another person, the customer must ensure that they are authorized to provide the information and, where appropriate, inform that person about this Privacy Policy.

5. Personal data we may collect

Depending on the service and circumstances, we may collect the following categories of personal data.

Identity information

- Full legal name;
- Previous or alternative names;
- Date and place of birth;
- Nationality;
- Gender, where legally required;
- Photograph;
- Signature;
- National identity number;
- Passport number;
- Foreign national certificate number;
- Tax identification number; and
- Copies or details of identity documents.

Contact and address information

- Residential address;
- Business address;
- Postal address;
- Telephone number;
- Email address; and
- Alternative contact information.

Customer-profile information

- Occupation;
- Employer;
- Business activity;

- Employment status;
- Income range;
- Source of funds;
- Source of wealth;
- Customer category;
- Expected transaction activity;
- Purpose of the relationship; and
- Customer risk classification.

Transaction information

- Sender and beneficiary details;
- Transaction amount;
- Currency;
- Exchange rate;
- Fees and charges;
- Transaction purpose;
- Payment and payout method;
- Transaction date and time;
- Branch, agent or channel;
- Bank-account information;
- Mobile-money information;
- Partner references;
- Internal references;
- Refund and reversal information; and
- Transaction status and history.

Corporate and beneficial-ownership information

- Company registration details;
- Incorporation documents;
- Registered office;
- Nature of business;
- Directors;
- Shareholders;
- Partners;
- Trustees;
- Beneficial owners;
- Ownership percentages;
- Control arrangements;
- Resolutions;
- Mandates; and
- Authorized representatives.

Compliance and risk information

- Customer due-diligence records;
- Enhanced due-diligence records;
- Politically exposed person status;
- Sanctions-screening results;

- Adverse-media information;
- Source-of-funds evidence;
- Source-of-wealth evidence;
- Compliance-review information;
- Fraud indicators;
- Transaction-monitoring alerts;
- Regulatory and law-enforcement requests; and
- Investigation and case-management records.

Technical and security information

- IP address;
- Device identifiers;
- Browser type;
- Operating system;
- Login records;
- Session information;
- Website activity;
- Security logs;
- Authentication events;
- Approximate location information;
- Cookie identifiers;
- API access logs; and
- Fraud or cybersecurity indicators.

Communications

- Emails;
- Telephone call records;
- Call recordings, where used;
- Messages;
- Complaints;
- Feedback;
- Support requests; and
- Other correspondence.
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Premises and security information

- CCTV footage;
- Visitor records;
- Access-control records; and
- Incident reports.

Biometric information

Where lawfully implemented and necessary, Sunny Forex may process biometric information for identity verification, fraud prevention or security.

This paragraph must be removed before publication where Sunny Forex does not process biometric data.

6. How we collect personal data

We may collect personal data:

- Directly from the person concerned;
- From a sender, beneficiary or representative;
- From corporate customers;
- From agents and subagents;
- From banks and financial institutions;
- From M-Pesa and other mobile-money providers;
- From remittance and payout partners;
- From identity-verification providers;
- From sanctions, PEP and adverse-media screening providers;
- From government, regulatory or law-enforcement sources;
- From public records;
- From website cookies and technical logs;
- From fraud-prevention providers;
- From professional advisers; and
- From other lawful sources.

7. Why we process personal data

We may process personal data to:

- Register and identify customers;
- Verify identity and authority;
- Identify beneficial owners;
- Process remittance and foreign-exchange transactions;
- Pay beneficiaries;
- Process M-Pesa and bank payouts;
- Calculate and disclose exchange rates, fees and commissions;
- Provide customer support;
- Manage complaints and disputes;
- Conduct KYC, CDD and enhanced due diligence;
- Perform PEP and sanctions screening;
- Monitor transactions;
- Prevent money laundering, terrorism financing and proliferation financing;
- Prevent fraud, scams and cybersecurity incidents;
- Maintain transaction and accounting records;
- Reconcile transactions with partners;
- Meet legal and regulatory obligations;
- Respond to competent authorities;
- Establish, exercise or defend legal claims;
- Improve service quality;
- Maintain system security;
- Conduct audits and assurance reviews;

- Communicate service and policy changes;
- Conduct marketing where lawfully permitted; and
- Manage business operations.

8. Legal grounds for processing

Depending on the circumstances, we process personal data because:

- Processing is necessary to enter into or perform a contract;
- Processing is necessary to comply with a legal or regulatory obligation;
- Processing is necessary for Sunny Forex's legitimate interests, provided those interests do not improperly override individual rights;
- Processing is necessary to protect the vital interests of a person;
- Processing is necessary for the establishment, exercise or defence of legal claims;
- Processing is necessary for a task carried out in the public interest where applicable; or
- The person has provided valid consent.

We do not rely on consent where processing is required to comply with AML, sanctions, transaction-record, regulatory-reporting or other legal obligations.

Withdrawing consent does not require Sunny Forex to delete information that must be retained or processed under another lawful basis.

9. Sensitive personal data

Some information processed by Sunny Forex may be classified as sensitive personal data.

We will process sensitive personal data only where:

- It is necessary and proportionate;
- A valid legal basis exists;
- Additional safeguards are applied;
- Processing is required by law; or
- Valid consent has been obtained where consent is required.

Access to sensitive personal data is limited to authorized persons with a legitimate need to use it.

10. AML, sanctions, fraud and compliance processing

Sunny Forex uses customer and transaction information to comply with financial-crime-prevention obligations.

This may include:

- Customer-risk profiling;
- Identity verification;
- Beneficial-owner verification;
- PEP screening;
- Sanctions screening;
- Adverse-media screening;
- Source-of-funds analysis;
- Source-of-wealth analysis;
- Transaction monitoring;
- Fraud detection;
- Investigation of unusual activity; and
- Reporting to competent authorities.

Sunny Forex may be legally prohibited from providing access to or disclosing certain information where doing so could reveal:

- A suspicious transaction report;
- An investigation;
- A sanctions review;
- Confidential risk controls;
- Information concerning another person; or
- Information subject to legal privilege or another lawful restriction.

11. Automated processing and profiling

Sunny Forex may use automated tools to assist with:

- Identity verification;
- Duplicate-customer detection;
- Sanctions and PEP matching;
- Fraud detection;
- Customer-risk classification;
- Transaction monitoring;
- Security monitoring; and
- Identification of unusual activity.

Automated tools may generate alerts, risk indicators or recommendations.

Where a decision produces a significant effect and is based solely on automated processing, Sunny Forex will provide the protections required by applicable law, including human review where legally required.

Customers may contact us to request information about relevant automated processing, subject to lawful restrictions.

This section should be adjusted to reflect the actual systems used by Sunny Forex.

12. Sharing personal data

We may disclose personal data to:

- The Central Bank of Kenya;
- The Financial Reporting Centre;
- The Office of the Data Protection Commissioner;
- Law-enforcement agencies;
- Courts and tribunals;
- Tax and other government authorities;
- Banks;
- Mobile-money providers;
- Remittance and payout partners;
- Agents and subagents;
- Identity-verification providers;
- Sanctions and PEP screening providers;
- Fraud-prevention providers;
- Cloud, hosting and technology providers;
- Communications providers;
- Auditors;
- Insurers;
- Lawyers and professional advisers;
- Debt-recovery or dispute-resolution providers, where applicable;
- Group companies, where lawful and necessary;
- Potential purchasers or investors in a lawful corporate transaction; and
- Other persons where disclosure is required or permitted by law.

We require relevant processors and service providers to protect personal data and use it only for authorized purposes.

Sharing personal data with a partner does not permit that partner to use it for unrelated purposes.

13. International transfers

Money-remittance services and technology systems may require personal data to be transferred to or accessed from countries outside Kenya.

This may occur where:

- A beneficiary is located outside Kenya;
- A foreign remittance or payout partner is involved;
- A bank or mobile-money provider is located abroad;
- A service provider hosts or supports systems outside Kenya;
- International sanctions or identity-verification providers are used; or
- A foreign regulator or competent authority has lawful jurisdiction.

Sunny Forex will use a lawful transfer mechanism, which may include:

- Transfer to a country or recipient providing adequate protection;
- Contractual, technical and organizational safeguards;

- Transfer necessary to perform a contract or transaction;
- Transfer required for legal claims or regulatory compliance;
- Transfer in the public interest; or
- Explicit consent where legally required.

Additional safeguards may be applied to sensitive personal data.

14. Data retention

Sunny Forex retains personal data only for as long as reasonably necessary for the purpose for which it was collected and to meet legal, regulatory, operational and evidential obligations.

Relevant KYC, AML and transaction records will generally be retained for at least seven years from the applicable transaction, termination of the relationship or other legally defined starting point.

Information may be retained for longer where necessary for:

- An investigation;
- Litigation or dispute;
- A regulatory direction;
- A legal hold;
- Fraud prevention;
- Enforcement of rights;
- Tax or accounting requirements; or
- Another lawful purpose.

Indicative retention categories include:

Record category	Indicative period
Customer KYC and CDD records	At least seven years after the relationship ends
Transaction records	At least seven years after completion
Beneficial-ownership records	At least seven years after the relationship ends
Compliance alerts and investigations	At least seven years or longer where required
Complaints and disputes	Applicable legal or operational period
Security and access logs	A period proportionate to security needs
CCTV footage	A limited operational period unless required for an incident
Marketing consent records	Duration of consent and a reasonable suppression period

The final periods must remain aligned with Sunny Forex's approved internal retention schedule.

15. Security

Sunny Forex uses appropriate technical and organizational safeguards designed to protect personal data.

Controls may include:

- Role-based access controls;
- Authentication and authorization;
- Encryption;
- Logging and monitoring;
- Network and endpoint protection;
- Secure backups;
- Vulnerability and security testing;
- Staff confidentiality obligations;
- Employee training;
- Supplier assessments;
- Incident-response procedures;
- Business-continuity arrangements; and
- Physical-security controls.

No system is completely secure. Customers must also protect their passwords, verification codes, identity documents and transaction information.

16. Individual rights

Subject to applicable law and lawful exemptions, a person may have the right to:

- Be informed about processing;
- Request access to personal data;
- Request correction of inaccurate or misleading data;
- Object to certain processing;
- Request restriction of processing;
- Request deletion where legally available;
- Request portability of eligible personal data;
- Withdraw consent where processing is based on consent;
- Object to direct marketing;
- Request review of certain automated decisions; and
- Lodge a complaint with Sunny Forex or the Office of the Data Protection Commissioner.

These rights are not absolute.

Sunny Forex may be unable to delete or disclose information where:

- Retention is legally required;
- Disclosure would reveal confidential AML or sanctions information;

- The information concerns another person;
- An investigation or legal claim is involved;
- Legal privilege applies; or
- Another lawful exemption applies.

We may request proof of identity before acting on a request.

17. How to submit a privacy request

Privacy requests may be sent to:

Privacy contact: privacy@sunnyremit.com

Postal address: P. O. Box 34166 – 00100

Physical address: Lavington Avenue Complex, Ground Floor, James Gichuru Road, Lavington, Nairobi, Kenya

The request should include:

- Full name;
- Contact details;
- Nature of the request;
- Relevant customer or transaction reference;
- Description of the information involved; and
- Proof of identity where required.

We will respond within the period required by applicable law.

18. Marketing communications

Sunny Forex may send marketing communications where:

- Valid consent has been obtained;
- Marketing is otherwise lawfully permitted; or
- The communication concerns a related service and applicable requirements are satisfied.

Marketing consent will be kept separate from acceptance of mandatory service terms.

A person may opt out by:

- Using the unsubscribe method provided;
- Contacting Sunny Forex;
- Changing available communication preferences; or
- Informing branch or customer-support staff.

Opting out of marketing does not prevent Sunny Forex from sending:

- Transaction confirmations;
- Security alerts;
- Compliance requests;
- Service notices;
- Policy updates; or
- Other non-marketing communications.

19. Cookies and similar technologies

Our website may use:

- Strictly necessary cookies;
- Session and authentication cookies;
- Security cookies;
- Preference cookies;
- Analytics cookies; and
- Marketing cookies where approved and consented to.

Non-essential cookies should not be activated before the required consent is obtained.

Further details are provided in our Cookie Policy and cookie preference centre.

20. Children and minors

Sunny Forex services are generally intended for persons who are legally capable of entering into transactions.

Where a service involving a minor is permitted, Sunny Forex may require:

- Identification of the minor;
- Identification of the parent, guardian or authorized representative;
- Evidence of the relationship or authority;
- Appropriate consent where required; and
- Additional safeguards.

We do not knowingly use children's personal data for direct marketing without a lawful basis and appropriate authorization.

21. Personal-data breaches

Sunny Forex maintains procedures for identifying, containing, investigating and responding to personal-data breaches.

Where required by law, Sunny Forex will notify:

- The Office of the Data Protection Commissioner;
- Affected persons; and

- Other competent authorities.

Notifications may be delayed or limited where permitted or required by law, including where disclosure could prejudice an investigation.

22. External websites and services

Our website may contain links to third-party websites or services.

Sunny Forex is not responsible for the privacy practices of independent third parties.

Customers should review the privacy information of a third party before providing personal data to it.

23. Changes to this Privacy Policy

Sunny Forex may update this Privacy Policy to reflect changes in:

- Law or regulation;
- Services;
- Technology;
- Data-processing activities;
- Service providers;
- Business operations; or
- Risk and security requirements.

The updated Policy will show its version, effective date and last-updated date.

Material changes may also be communicated through appropriate channels.

Where a change requires new consent, Sunny Forex will request consent before relying on it for the affected processing.

24. Complaints

A person who believes that Sunny Forex has processed personal data improperly should contact:

Privacy or Data Protection Office

Sunny Forex & Remittance Ltd
Lavington Avenue Complex, Ground Floor,
James Gichuru Road,
Lavington, Nairobi, Kenya

Email: privacy@sunnyremit.com

Telephone: +254 722 590 049

A complaint may also be submitted to the Office of the Data Protection Commissioner in accordance with applicable law.

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